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Tellingly, Flowers' counsel, although aided by "many interns," App. 214, made many more mistakes during this process. *E.g., id.*, at 204–205 (incorrectly identifying a juror); *id.*, at 207–208 (striking a juror and then immediately making an argument premised on not striking that juror); *id.*, at 210 (confusing jurors); *id.*, at 211 (confusing which family members were acquainted with a juror); *id.*, at 212 (incorrectly stating that no general question was asked of all jurors as to accounts or suits with the Tardys, see *id.*, at 70, 217); *id.*, at 222–223 (confusing jurors); *id.*, at 230 ("[M]aybe we didn't get to this juror").⁶

In short, in the context of the trial below, a few trivial errors on secondary or tertiary race-neutral reasons for striking some jurors can hardly be counted as "telling" evidence of race discrimination. *Ante*, at 314; see *ibid.* ("[M]istaken explanations should not be confused with racial discrimination").

⁶These mistakes continued before this Court. Flowers asserts that in his first four trials, the State "struck every black panelist that [it] could," Brief for Petitioner 23; that is false. See *infra*, at 345–346. Flowers says that the State asked potential juror Robinson "a total of five questions," Brief for Petitioner 15, n. 14, but it actually asked 10. See App. 82–83; Tr. 1147–1148. Flowers says that the State "did not question [Robinson] on [his] relationship" with Flowers' brother, Brief for Petitioner 46, n. 35; it did. See App. 82–83. Flowers refers to Bertha Tardy's "son," Brief for Petitioner 52, but Tardy's only child was a daughter. See Tr. 3268. Flowers says that "the Mississippi Supreme Court found two clear *Batson* violations" in the third trial, Brief for Petitioner 32; it did not. See *infra*, at 344–345. Flowers repeatedly refers to "the decidedly false claim that Wright's" and Burnside's "wages had been garnished," Brief for Petitioner 56, 50, 18, 22, n. 24, 51; Tr. of Oral Arg. 8, 11, 12, even though that claim is true. See *supra*, at 322–326. Flowers said that Wright "still work[ed]" at Wal-Mart at the time of jury selection, Tr. of Oral Arg. 16; she did not. Tr. 782. Flowers agreed that in this trial, the State struck "every black juror that was available on the panel" after "the first one," Tr. of Oral Arg. 57–58; Reply Brief 1, but it did not. See App. 241 (tendering a black juror as an alternate).

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D

Turning to even less probative evidence, the majority asserts that the State engaged in disparate—“dramatically disparate,” the majority repeats, *ante*, at 288, 304, 307, 310, 311, 315—questioning based on race. By the majority’s count, “[t]he State asked the five black prospective jurors who were struck a total of 145 questions” and “the 11 seated white jurors a total of 12 questions.” *Ante*, at 308. The majority’s statistical “evidence” is irrelevant and misleading.

First, the majority finds that only one juror—Carolyn Wright—was struck on the basis of race, but it neglects to mention that the State asked her only five questions. See App. 71–72, 104–105. Of course, the majority refuses to identify the “certain level of disparity” that meets its “dramatically disparate” standard, *ante*, at 310, but its failure to recognize that the only juror supposedly discriminated against was asked hardly any questions suggests the majority is “slic[ing] and dic[ing]” statistics, *ante*, at 308. Asking other black jurors more questions would be an odd way of “try[ing] to find some pretextual reason” to strike Wright. *Ante*, at 310.

Second, both sides asked a similar number of questions to the jurors they peremptorily struck. This is to be expected—a party will often ask more questions of jurors whose answers raise potential problems. Among other reasons, a party may wish to build a case for a cause strike, and if a cause strike cannot be made, those jurors are more likely to be peremptorily struck. Here, Flowers asked the jurors he struck—all white, Tr. of Oral Arg. 57—an average of about 40 questions, and the State asked the black jurors it struck an average of about 28 questions. The number of questions asked by the State to these jurors is not evidence of race discrimination.

Moreover, the majority forgets that correlation is not causation. The majority appears to assume that the only relevant difference between the black jurors at issue and seated

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white jurors is their race. But reality is not so simple. Deciding whether a statistical disparity is caused by a particular factor requires controlling for other potentially relevant variables; otherwise, the difference could be explained by other influences. See Fisher, *Multiple Regression in Legal Proceedings*, 80 Colum. L. Rev. 702, 709 (1980); cf. *Box v. Planned Parenthood of Ind. & Ky., Inc.*, 587 U. S. 490, 501, n. 4 (2019) (THOMAS, J., concurring) (showing that bare statistical disparities can be used to support diametrically different theories of causation). Yet the majority's raw comparison of questions does not control for any of the important differences between struck and seated jurors. See *supra*, at 327–330. This defective analysis does not even begin to provide probative evidence of discrimination. See, e.g., *People Who Care v. Rockford Bd. of Ed., School Dist. No. 205*, 111 F. 3d 528, 537 (CA7 1997) (Posner, C. J.) (“[A] statistical study that fails to correct for salient explanatory variables, or even to make the most elementary comparisons, has no value as causal explanation”). Indeed, it is difficult to conceive of a statistical study that could possibly control for all of the relevant variables in this context, including tone of voice, facial expressions, and other relevant information.

Most fundamentally, the majority's statistics are divorced from the realities of this case. Winona is a very small town, and “this was the biggest crime that had ever occurred” there. Tr. 1870. As one juror explained, “[e]verybody in Winona has probably” heard about the case. *Id.*, at 1180; accord, *id.*, at 1183 (Flowers' counsel stating the same). One potential juror knew almost everyone “involved in it” between her job as a teacher and attendance at church. App. 81–82. Tardy Furniture “basically did business with the whole Winona community.” Tr. 2667.

Moreover, Flowers' family was “very, very prominent” in Winona's black community. *Id.*, at 1750. As the trial court explained,

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“Flowers has a number of brothers and sisters. His parents are well-known. [His father] is apparently one of the most well-thought of people in this community. You have had countless numbers of African-American individuals that have come in and said they could not sit in judgment because of their knowledge of Mr. Flowers, and they could not be fair and impartial.” App. 197; see *id.*, at 199–200; Tr. 1750.

Flowers’ counsel stated that when Flowers’ father “was working as a greeter at Wal-Mart,” there was “probably not a person in Winona who wouldn’t have said, ‘Mr. Archie’s my friend.’” App. 221. According to the trial court, “the overwhelming majority” of potential black jurors “stated that they could not sit in judgment of him because of kinships, friendships, and family ties.” *Id.*, at 256.

To obtain a sufficient jury pool, the trial court had to call 600 potential jurors. *Id.*, at 258. In such a small county, that meant a man, his wife, his mother, and his father were all called for jury duty in this case. See Tr. 939–941. According to Flowers,

“seventy-five percent of the total qualified venire, sixty-three percent of the venire members actually tendered for acceptance or rejection as jurors, and forty percent of the persons empanelled as jurors or alternates (six of 15) were personally acquainted with either the defendant or one or more of the decedents or their families and/or had actual opinions as to guilt or innocence formed prior [to] the trial.” Brief for Appellant 130.

Before peremptory strikes even started, the venire had gone from 42% to 28% black. App. 194–195. As the trial court explained, “nothing the State has done has caused this statistical abnormality.” *Id.*, at 198. Instead, any “statistical abnormality” “is strictly because of the prominence of [Flowers’] family.” *Id.*, at 200. Flowers’ counsel admitted that she was not “surprise[d]” by the reduction given the

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circumstances and the experiences in the previous trials. *Id.*, at 199.⁷

The state courts appropriately viewed the parties' questioning in light of these circumstances. The Mississippi Supreme Court, for example, found that the State "asked more questions" of the "jurors who knew more about the case, who had personal relationships with Flowers's family members, who said they could not be impartial, or who said they could not impose the death penalty," and that "[t]hose issues are appropriate for followup questions." 240 So. 3d, at 1125. The court also found that "[t]he State's assertion that elaboration and followup questions were needed with more of the African-American jurors is supported by the record." *Ibid.* The majority wonders why "the State spent far more time questioning the black prospective jurors" and concludes that "[n]o one can know." *Ante*, at 308, 310. But even Flowers admits that "more African-American jurors knew the parties, most of the [State's] follow-up questions pertained to relevant matters, [and] more questions were asked of jurors who had personal relationships about the case, or qualms about the death penalty." Pet. for Cert. 23 (emphasis deleted).

The majority ignores Flowers' concession, but the questions asked by the State bear it out. The State's questions also refute the majority's suggestion that the State did "not as[k] white prospective jurors th[e] same questions." *Ante*, at 310. The State asked all potential jurors whether Tardy Furniture sued them, and only Wright and Burnside

⁷ One trial had to be moved to a new venue because "during *voir dire* it became apparent that a fair and impartial jury could not be impaneled." *Flowers v. State*, 842 So. 2d 531, 535 (Miss. 2003). At another trial, one of two black jurors seated was "excused after he informed the judge that he could not be a fair and impartial juror." *Flowers v. State*, 947 So. 2d 910, 916 (Miss. 2007). And at the next trial, one of the alternate jurors, who was black, was convicted of perjury after it came to light that she had lied during *voir dire* about not knowing Flowers and had visited him in jail. 240 So. 3d 1082, 1137 (Miss. 2017).

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answered in the affirmative. See App. 70–71, 99–100, 217–218. Two of five questions to Wright and around eight questions to Burnside followed up on this lawsuit. *Id.*, at 70–72, 141–143. All potential jurors were asked whether they knew Flowers’ father, and no white jurors had worked with him at Wal-Mart. *Id.*, at 61, 218. Two of Wright’s remaining three questions followed up on this relationship. *Id.*, at 104–105. The State asked all potential jurors whether anyone lived in the areas around Flowers’ house, and no white jurors answered in the affirmative. *Id.*, at 75–81. Seven questions to Copper—another black prospective juror—and three to Burnside followed up on this geographic proximity. *Id.*, at 75–77, 79–80. Copper’s remaining questions were mostly about her working with Flowers’ father and sister and her statement that she would lean in Flowers’ favor. *Id.*, at 77–78, 189–190. Burnside’s remaining questions were mostly about Flowers’ visits to her house and her statement that she could not judge others. *Id.*, at 80–81, 143–144. The State asked all potential jurors whether anyone was related to Flowers’ family, and only Jones, a black prospective juror, answered affirmatively, leading to about 18 followup questions. *Id.*, at 72–75, 86–88, 179–180. Jones’ remaining questions were mostly about her being late to court and her untruthful answer regarding the death penalty on the jury questionnaire. *Id.*, at 75, 180–182. Finally, nearly all of Cunningham’s questions were about her work with Flowers’ sister. *Id.*, at 83–85, 130–133. Any reasonable prosecutor would have followed up on these issues, and the majority does not cite even a single question that it thinks suggests racial discrimination.

The majority’s comparison of the State’s questions to Copper with its questions to several white jurors is baseless. As an initial matter, Flowers forfeited this argument by not making it at the trial court. See *supra*, at 330–331; App. 235–238. And as the Court has previously explained, “a retrospective comparison of jurors based on a cold appellate rec-

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ord may be very misleading when alleged similarities were not raised at trial” because “an exploration of the alleged similarities at the time of trial might have shown that the jurors in question were not really comparable.” *Snyder*, 552 U. S., at 483.

Even if Flowers had not forfeited this argument, it is meritless. As previously discussed, Copper worked with two of Flowers’ family members and testified that she could “lean toward” Flowers and would not decide the case “with an open mind.” App. 190; see *id.*, at 78. These answers justified heavier questioning than was needed for Chesteen, the white bank teller who occasionally served Flowers’ family members. Moreover, the State *did* ask Chesteen and Lester, a white juror who also worked at the bank, “follow-up questions about [their] relationships with Flowers’ family.” *Ante*, at 309; see App. 83, 86.⁸ I have already addressed Lester and Waller, another white juror who had connections to the victims, and why the State did not need to ask them more questions. See *supra*, at 327–330. The majority also references Larry Blaylock and Marcus Fielder, two other white prospective jurors who “had relationships with defense witnesses.” *Ante*, at 309. As for Blaylock, the majority makes no attempt to say what those “relationships” were, presumably because the only relationship discussed at the *Batson* hearing was Blaylock’s 30-year friendship with the *prosecutor’s* primary investigator—whom the defense planned to call as a hostile witness. App. 215; Tr. 1041–1042. The investigator was also his uncle by marriage, *id.*, at 1078, and the defense asked Blaylock some 46 questions, *id.*, at 1041–1042, 1078, 1182–1187. Likewise, Fielder’s only relationship discussed at the *Batson* hearing was his work for a

⁸The majority seems to draw a distinction between individual questions asked during group *voir dire* and individual questions asked during individual *voir dire*. *Ante*, at 307–309. I cannot imagine why this distinction would matter here. The majority does not explain its reasoning, and its statistics treat these questions the same.

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prosecution witness who had investigated the murders. See App. 215. The defense felt it necessary to ask Fielder about 30 followup questions. Tr. 1255–1260. In short, despite the majority's focus on Copper, *ante*, at 309, no one could (or did) compare the State's need to question her with its need to question these jurors.

Next, the majority complains that the State had a witness testify that Cunningham worked closely with Flowers' sister. According to the majority, "[t]he State apparently did not conduct similar investigations of white prospective jurors." *Ibid.* Putting aside that the majority offers no record support for this claim, the majority does not tell us what investigation was performed, much less which white jurors could or should have been similarly investigated. As far as the record reveals, the State made one call to Cunningham's employer on the morning of the hearing to ask a single question: Where did Cunningham work in relation to Flowers' sister? App. 149, 154. I see no reason to assume that the State failed to conduct any other single-phone-call "investigations" in this high-profile trial. Nor am I aware of white jurors who worked in any proximity to Flowers' family members. If the majority is going to infer racial bias from the State's attempt to present the truth in court—particularly in a case where juror perjury had been a problem, see *supra*, at 337, n. 7—it ought to provide a sound basis for its criticism.

Finally, to support its view that "[t]he difference in the State's approaches to black and white prospective jurors was stark," the majority asserts that "[w]hite prospective jurors who admitted that they or a relative had been convicted of a crime were accepted without apparent further inquiry by the State." *Ante*, at 309. The majority again cites nothing to support this assertion, and the record does not support it. Three of the struck black jurors had relatives with a criminal conviction. See Tr. 883 (Burnside); *id.*, at 885 (Copper); 2d Supp. Record 255b (Cunningham). The State asked no questions to either Copper or Cunningham on this point, and it

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asked three questions to Burnside about her son's robbery conviction. See App. 144–145. The State treated white jurors similarly. For example, the State asked three questions to Suzanne Winstead about a nephew's drug charges, Tr. 1190–1191; four questions to Sandra Hamilton about crimes of her first cousins, *id.*, at 977; and two questions to Larry Blaylock about a cousin who committed murder, *id.*, at 978–979.⁹

Because any “disparate questioning or investigation of black and white prospective jurors” here “reflect[s] ordinary race-neutral considerations,” *ante*, at 310, this factor provides no evidence of racial discrimination in jury selection below.

E

If this case required us to decide whether the state courts were correct that no *Batson* violation occurred here, I would find the case easy enough. As I have demonstrated, the evidence overwhelmingly supports the conclusion that the State did not engage in purposeful race discrimination. Any competent prosecutor would have struck the jurors struck below. Indeed, some of the jurors' conflicts might even have justified for-cause strikes. But this case is easier yet. The question before us is not whether we “‘would have decided the case differently,’” *Easley v. Cromartie*, 532 U. S. 234, 242 (2001), but instead whether the state courts were *clearly* wrong. And the answer to that question is obviously no.

The Court has said many times before that “[t]he trial court has a pivotal role in evaluating *Batson* claims.” *Snyder*, 552 U. S., at 477. The ultimate question in *Batson* cases—whether the prosecutor engaged in purposeful dis-

⁹The majority ominously warns that, through questioning, prosecutors “can try to find some pretextual reason . . . to justify what is in reality a racially motivated strike” and that “[p]rosecutors can decline to seek what they do not want to find about white prospective jurors.” *Ante*, at 310. I would not so blithely impute single-minded racism to others. Doing so cheapens actual cases of discrimination.

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crimination—“involves an evaluation of the prosecutor’s credibility,” and “‘the best evidence [of discriminatory intent] often will be the demeanor of the attorney who exercises the challenge.’” *Ibid.* The question also turns on “a juror’s demeanor,” “making the trial court’s firsthand observations of even greater importance.” *Ibid.* “[O]nly the trial judge can be aware of the variations in demeanor and tone of voice that bear so heavily on the listener’s understanding of and belief in what is said.” *Anderson v. Bessemer City*, 470 U. S. 564, 575 (1985).

Because the trial court is best situated to resolve the sensitive questions at issue in a *Batson* challenge, “a trial court’s ruling on the issue of discriminatory intent must be sustained unless it is clearly erroneous.” *Snyder, supra*, at 477; see *Foster*, 578 U. S., at 500. Our review is particularly deferential where, as here, “an intermediate court reviews, and affirms, a trial court’s factual findings.” *Easley, supra*, at 242.

Under this clear-error standard of review, “[w]here there are two permissible views of the evidence, the factfinder’s choice between them cannot be clearly erroneous.” *Anderson, supra*, at 574; see also *Cooper v. Harris*, 581 U. S. 285, 293 (2017). The notion that it is “impermissible” to adopt the view of the evidence that I have outlined above is incredible. Besides being supported by carefully reasoned opinions from both the trial court and the Mississippi Supreme Court—opinions that, unlike the majority’s, consider all relevant facts and circumstances—that view is *at a minimum* consistent with the factual record. At the *Batson* hearing, the State offered “a coherent and facially plausible story that is not contradicted” by the record, and the trial court’s “decision to credit” such a story “can virtually never be clear error.” *Anderson, supra*, at 575. The trial court reasonably understood the supposedly “dramatically disparate” questioning to be explained by the circumstances of this case—circumstances that the majority does not dispute.

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Likewise, the trial court reasonably did not view any pica-yune mistakes by the State to be compelling evidence of racial discrimination. (Of course, neither did the defense, which is presumably why it did not make that argument. But the clear-error and forfeiture doctrines are speed bumps en route to the Court's desired destination.) Yet the Court discovers "clear error" based on its own review of a near-decade-old record. The majority apparently thinks that it is in a better position than the trial court to judge the tone of the questions and answers, the demeanor of the attorneys and jurors, the courtroom dynamic, and the culture of Winona, Mississippi.

III

Given that there was no evidence of race discrimination in the trial here, the majority's remaining explanation for its decision is conduct that took place *before* this trial. The majority builds its decision around the narrative that this case has a long history of race discrimination. This narrative might make for an entertaining melodrama, but it has no basis in the record. The history, such as it is, does not come close to carrying Flowers' burden of showing that the state courts clearly erred.

A

The State exercised 50 peremptory strikes in Flowers' previous trials. As the case comes to us, 49 of those strikes were race neutral. If this history teaches us anything, it is that we should not assume the State strikes jurors based on their race.

Flowers' first trial was for the murder of Bertha Tardy only. In that trial, the State exercised peremptory strikes on five black jurors and seven white jurors. App. 35. The trial court found that Flowers had not made out even a prima facie *Batson* case, App. 12, n. 3, much less showed purposeful race discrimination in any of the State's strikes. Thus, as this case comes to us, all of the State's strikes in this trial were race neutral.

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What the majority calls the second trial is actually Flowers' first trial for another murder—that of Bobo Stewart. During jury selection, the State exercised peremptory strikes on five black jurors and two white jurors; the trial court disallowed one of the State's strikes under *Batson*. App. 35; *id.*, at 17–19. Flowers was convicted and apparently did not appeal on *Batson* grounds. Eventually, the Mississippi Supreme Court reversed Flowers' convictions from the first two trials for reasons unrelated to jury selection. The court held that certain evidence relevant to all four murders was improperly admitted. *Flowers v. State*, 773 So. 2d 309, 317, 319–324 (Miss. 2000); *Flowers v. State*, 842 So. 2d 531, 538, 539–550 (Miss. 2003).

The State next tried Flowers for all four murders together. In this “third” trial—actually the first trial for the murders of Robert Golden and Carmen Rigby—the State struck 15 black jurors. App. 35. The trial court found no *Batson* violations. *Flowers v. State*, 947 So. 2d 910, 916 (Miss. 2007) (plurality opinion). On appeal, Flowers did not challenge four of the strikes, *id.*, at 918, and the Mississippi Supreme Court unanimously upheld the trial court's ruling as to nine of the other strikes, see *id.*, at 918–935. Four justices, constituting a plurality of the court, would have held that two strikes violated *Batson*, 947 So. 2d, at 926, 928; one justice concurred only in the judgment because she “d[id] not agree” with the “plurality” “that this case is reversible on the *Batson* issue alone,” *id.*, at 939 (Cobb, P. J., concurring in result); and four justices would have held that no strikes violated *Batson*, 947 So. 2d, at 942–943 (Smith, C. J., dissenting). If the concurring justice thought any strikes were impermissible, *Batson* would have required her to reverse on that basis.

Thus, the Court is wrong multiple times over to say that the Mississippi Supreme Court “conclud[ed] that the State had again violated *Batson* by discriminating on the basis of race in exercising all 15 of its peremptory strikes against 15

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black prospective jurors.” *Ante*, at 291. That court unanimously concluded that 13 strikes were race neutral, and a majority concluded that the remaining two strikes did not violate *Batson*. Therefore, neither the trial court nor the Mississippi Supreme Court found any *Batson* violation in this third trial—all 15 strikes were race neutral.¹⁰

In the next two trials, Flowers apparently did not even allege a *Batson* violation. In the “fourth” trial, the State struck 11 black jurors but did not exercise its three remaining strikes; 5 black jurors were seated. App. 28–29, 35. In the “fifth” trial, the State struck five jurors, but Flowers is unable to identify the race of these jurors, and three black jurors were seated. Brief for Petitioner 13. Thus, up to the present trial, the State had sought to exercise 50 peremptory strikes, 36 on potential black jurors. Finally, in this trial, the State struck five black jurors and one white juror; one black juror sat on the jury, and one black juror was an alternate.

According to the majority, “the State’s use of peremptory strikes in Flowers’ first four trials reveal[s] a blatant pattern

¹⁰The Court repeatedly and inaccurately attributes statements by the plurality to the Mississippi Supreme Court—or deems those statements part of a “lead opinion,” *ante*, at 287, 291, 305, even though a majority of that court disagreed in relevant part. The Court also takes the plurality’s statements out of context. For instance, three times the Court quotes the plurality’s statement that “[t]he instant case presents us with as strong a prima facie case of racial discrimination as we have ever seen in the context of a *Batson* challenge.” *Ibid.* But that statement was focused solely on the fact that “[t]he prosecutor exercised all fifteen of his peremptory strikes on African-Americans.” *Flowers*, 947 So. 2d, at 936. One could just as easily say that Flowers’ own strikes here—11 whites, zero blacks—present an overwhelming prima facie case of racial discrimination. Tr. of Oral Arg. 57 (admitting that Flowers’ trial counsel “only exercised peremptories against white jurors”). As the Court understands, a prima facie case is only the first step of *Batson*, *ante*, at 298, and a majority of the Mississippi Supreme Court in the third trial found that Flowers failed to carry his burden of proving purposeful racial discrimination as to *any* strike.

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of striking black prospective jurors.” *Ante*, at 305. The majority claims that “[o]ver the course of the first four trials, there were 36 black prospective jurors against whom the State could have exercised a peremptory strike,” and “[t]he State tried to strike all 36.” *Ibid.* The majority’s argument is wrong on several levels.

First, the majority is wrong on the numbers. The majority repeatedly says that over “the six trials combined,” “the State struck 41 of the 42 black prospective jurors it could have struck.” *Ante*, at 315; see *ante*, at 288. Yet in the fourth trial, according to Flowers himself, the State did not exercise available peremptory strikes on at least three black jurors. See App. 28–29. Moreover, the majority does not know the races of the struck jurors in the fifth trial. Given that at least three black jurors were seated and that the State exercised only five strikes, it would appear that the State did not exercise available strikes against at least three black jurors. Finally, in the most recent trial, the State tendered two black jurors for service on the jury, one of whom served as an alternate. (The majority’s strike numbers include strikes of alternates, so its juror numbers should too.) However the majority arrived at its numbers, the record tells a different story.¹¹

Second, the Court says that “[t]he State’s actions in the first four trials necessarily inform our assessment of the State’s intent,” for “[w]e cannot ignore that history.” *Ante*, at 306–307. Putting aside that no court below ignored the history, the majority completely ignores Flowers’ failure to challenge

¹¹ Rather than explain its numbers, the Court points out that when pressed at oral argument, the State agreed that 41 of 42 potential black jurors had been stricken. *Ante*, at 288, 305. No one else—not even Flowers—has agreed with that statistic. See Brief for Petitioner 32; App. 35. Flowers certainly did not present it to the state courts. The question before us is whether those courts clearly erred, and in reviewing their decisions, we must affirm “if the result is correct” based on the actual record. *NLRB v. Kentucky River Community Care, Inc.*, 532 U. S. 706, 722, n. 3 (2001).

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the State’s actions in the fifth trial—the one that immediately preceded this one. Flowers bears the burden of proving racial discrimination, and the reason information about the fifth trial is not “available,” *ante*, at 306, is that Flowers failed to present it. Perhaps he did not *want* to present it because the State struck only white jurors—who knows? Regardless, this failure must count against Flowers’ claim. Surely a party making a *Batson* claim cannot gather data from select trials and present only favorable snippets.

Third, and most importantly, that the State previously sought to exercise 36 strikes against black jurors does not “speak loudly” in favor of discrimination here, *ante*, at 305, because 35 of those 36 strikes were race neutral. By the majority’s own telling, the trial court may “consider historical evidence of the State’s *discriminatory* peremptory strikes from past trials.” *Ante*, at 304 (emphasis added). As I have shown, 35 of 36 strikes were not “discriminatory peremptory strikes.” The bare number of black-juror strikes is relevant only if one eliminates other explanations for the strikes, cf. *supra*, at 334–335, but prior adjudications (and Flowers’ failure to even object to some strikes) establish that legitimate reasons explained all but one of them. Is the majority today holding that the prior courts all committed clear error too? And what about the strikes that even Flowers did not object to—is the majority *sua sponte* holding that the State was engaged in purposeful racial discrimination as to those strikes? The majority’s reliance on race-neutral strikes to show discrimination is judicial alchemy.

B

The only incident in the history of this case even hinting at discrimination was that a trial judge 20 years ago prevented the State from striking one black juror in a case involving only one of Flowers’ crimes. If this single impermissible strike could provide evidence of purposeful race discrimination in a different trial 11 years later involving

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different murders (and victims of different races), it is surely the weakest of evidence. Even Flowers concedes that a single “*Batson* violation 20 years ago” would be only “weakly probative.” Tr. of Oral Arg. 19–20. That is the precise situation here. And this “weakly probative” single strike certainly does not overcome the complete absence of evidence of purposeful race discrimination in this trial. We know next to nothing about this strike, for Flowers has not even provided us with a transcript of the jury selection from that trial. And the trial court’s ruling on the strike was never reviewed on appeal.

Pretending for a moment that the concurring justice in the third trial had voted differently than she did, the history still could not overcome the absence of evidence of purposeful race discrimination in *this* trial. Flowers forthrightly acknowledged that he needed to show “discrimination in *this* trial in order to have a *Batson* violation.” *Id.*, at 23 (emphasis added). At a minimum, the state courts’ finding—that the history does not carry Flowers’ burden of proving purposeful race discrimination here—is not clearly erroneous. The courts below were presented with Flowers’ view of the history, and even accepting that view and “[t]aking into account the ‘historical evidence’ of past discrimination,” the Mississippi Supreme Court held that the trial court did not err “in finding that the State did not violate *Batson*.” 240 So. 3d, at 1135; see *id.*, at 1122–1124. The majority simply disregards this assessment by the state courts.

IV

Much of the Court’s opinion is a paean to *Batson v. Kentucky*, which requires that a duly convicted criminal go free because a juror was arguably deprived of his right to serve on the jury. That rule was suspect when it was announced, and I am even less confident of it today. *Batson* has led the Court to disregard Article III’s limitations on standing by giving a windfall to a convicted criminal who, even under

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Batson's logic, suffered no injury. It has forced equal protection principles onto a procedure designed to give parties absolute discretion in making individual strikes. And it has blinded the Court to the reality that racial prejudice exists and can affect the fairness of trials.

A

In *Batson*, this Court held that the Equal Protection Clause prohibits the State from “challeng[ing] potential jurors solely on account of their race or on the assumption that black jurors as a group will be unable impartially to consider the State’s case.” 476 U. S., at 89. “[I]ndividual jurors subjected to racial exclusion have the legal right to bring suit on their own behalf.” *Powers v. Ohio*, 499 U. S. 400, 414 (1991). To establish standing to assert this equal protection claim in a separate lawsuit, the juror would need to show that the State’s action caused him to suffer an injury in fact, and a likelihood that a favorable decision will redress the injury. *Lujan v. Defenders of Wildlife*, 504 U. S. 555, 560–561 (1992). Flowers, however, was not the excluded juror. And although he is a party to an ongoing proceeding, ““standing is not dispensed in gross””; to the contrary, “‘a plaintiff must demonstrate standing for each claim he seeks to press and for each form of relief that is sought.’” *Town of Chester v. Laroe Estates, Inc.*, 581 U. S. 433, 439 (2017).

Flowers should not have standing to assert the excluded juror’s claim. He does not dispute that the jury that convicted him was impartial, see U. S. Const., Amdt. 6, and as the Court has said many times, “[d]efendants are not entitled to a jury of any particular composition,” *Holland v. Illinois*, 493 U. S. 474, 483 (1990). He therefore suffered no legally cognizable injury. The only other plausible reason a defendant could suffer an injury from a *Batson* violation is if the Court thinks that he has a better chance of winning if more members of his race are on the jury. But that thinking relies on the very assumption that *Batson* rejects: that ju-

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rors might “be partial to the defendant because of their shared race.” *Ante*, at 299 (quoting *Batson*, *supra*, at 97). Moreover, it cannot be squared with the Court’s later decisions, which hold that “race is irrelevant to a defendant’s standing to object to the discriminatory use of peremptory challenges.” *Powers*, 499 U. S., at 416 (holding that a white defendant has standing to challenge strikes of black jurors).

Today, the Court holds that Carolyn Wright was denied equal protection by being excluded from jury service. But she is not the person challenging Flowers’ convictions (she would lack standing to do so), and I do not understand how Flowers can have standing to assert her claim. Why should a “denial of equal protection to other people” that does “not affect the fairness of that trial” mean that “the defendant must go free”? *Id.*, at 431 (Scalia, J., dissenting).

In *Powers*, the Court relied on the doctrine of third-party standing. As an initial matter, I doubt “whether a party who has no personal constitutional right at stake in a case should ever be allowed to litigate the constitutional rights of others.” *Kowalski v. Tesmer*, 543 U. S. 125, 135 (2004) (THOMAS, J., concurring); see also *Whole Woman’s Health v. Hellerstedt*, 579 U. S. 582, 629–633 (2016) (THOMAS, J., dissenting).

Even accepting the notion of third-party standing, it is hard to see how it could be satisfied in *Batson* cases. The Court’s precedents require that a litigant asserting another’s rights have suffered an “injury in fact” and have “a close relation” to the third party. *Powers*, *supra*, at 411. As shown, Flowers suffered no injury in fact under the Court’s precedents. Moreover, in the ordinary case, the defendant has no relation whatsoever to the struck jurors. (Here, as it happens, all the struck jurors knew Flowers or his family, but that hardly *helps* his *Batson* claim.)

In *Powers*, the Court concluded that defendants and struck jurors share a “common interest.” 499 U. S., at 413. But like most defendants, Flowers’ interest is in avoiding

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prison (or execution). A struck juror, by contrast, is unlikely to feel better about being excluded from jury service simply because a convicted criminal may go free. And some potential jurors, like Flancie Jones here, “really and truly . . . don’t want to” serve on a jury in the first place. App. 181 (emphasis added); see also *Hayes v. Missouri*, 120 U. S. 68, 71 (1887) (referring to “an unfortunate disposition on the part of business men to escape from jury duty”). If Flowers had succeeded on his *Batson* claim at trial and forced Jones onto the jury, it seems that *he*—her supposed third-party representative with a “common interest”—would have inflicted an injury on her.

Our remedy for *Batson* violations proves the point. The convicted criminal, who suffered no injury, gets his conviction vacated.¹² And even if the struck juror suffered a cognizable injury, but see *Powers, supra*, at 423–426 (Scalia, J., dissenting), that injury certainly is not redressed by undoing the valid conviction of another. Under Article III, Flowers should not have standing.

B

The more fundamental problem is *Batson* itself. The “entire line of cases following *Batson*” is “a misguided effort to remedy a general societal wrong by using the Constitution to regulate the traditionally discretionary exercise of peremptory challenges.” *Campbell v. Louisiana*, 523 U. S. 392, 404, n. 1 (1998) (THOMAS, J., concurring in part and dissenting in part). “[R]ather than helping to ensure the fairness of criminal trials,” *Batson* “serves only to undercut that fairness by emphasizing the rights of excluded jurors at the expense of the traditional protections accorded criminal

¹² The Court has never explained “why a violation of a third party’s right to serve on a jury should be grounds for reversal when other violations of third-party rights, such as obtaining evidence against the defendant in violation of another person’s Fourth or Fifth Amendment rights, are not.” *Campbell v. Louisiana*, 523 U. S. 392, 405 (1998) (THOMAS, J., concurring in part and dissenting in part).

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defendants of all races.” *Campbell, supra*, at 404, n. 1. I would return to our pre-*Batson* understanding—that race matters in the courtroom—and thereby return to litigants one of the most important tools to combat prejudice in their cases.

1

In *Strauder v. West Virginia*, 100 U.S. 303 (1880), the Court invalidated a state law that prohibited blacks from serving on juries. In doing so, we recognized that the racial composition of a jury could affect the outcome of a criminal case. See *id.*, at 308–309. The Court explained that “[i]t is well known that prejudices often exist against particular classes in the community, which sway the judgment of jurors, and which, therefore, operate in some cases to deny to persons of those classes the full enjoyment of that protection which others enjoy.” *Id.*, at 309. Thus, we understood that allowing the defendant an opportunity to “secur[e] representation of the defendant’s race on the jury may help to overcome racial bias and provide the defendant with a better chance of having a fair trial.” *Georgia v. McCollum*, 505 U.S. 42, 61 (1992) (THOMAS, J., concurring in judgment).

In *Swain v. Alabama*, 380 U.S. 202 (1965), the Court held that individual peremptory strikes could not give rise to an equal protection challenge. *Swain* followed *Strauder* in assuming that race—like other factors that are generally unsuitable for the government to use in making classifications—can be considered in peremptory strikes: “In the quest for an impartial and qualified jury, Negro and white, Protestant and Catholic, are alike subject to being challenged without cause.” *Swain*, 380 U.S., at 221. That is because the peremptory “challenge is ‘one of the most important of the rights secured to the accused.’” *Id.*, at 219. Based on its long history, the peremptory system “affords a suitable and necessary method of securing juries which in fact and in the opinion of the parties are fair and impartial.” *Id.*, at 212; see *id.*, at 212–219. The strike both “eliminate[s]